

PRESCOTT VANE LLP
Attorneys at Law
One Oliver Center, 40th Floor, Pittsburgh, Pennsylvania 15222

April 4, 2011

Rosalind Tenniel, Esq.
General Counsel
Torvane Industrial Group, Inc.
2200 Bayfront Parkway
Erie, Pennsylvania 16507

**Re: Engagement of Prescott Vane LLP —Kelling Station Unit 2 Expansion Project —
Our Matter No. 2011-0284**

Dear Rosalind:

Thank you for selecting Prescott Vane LLP. This letter sets out the terms of our engagement.

1. Scope of Representation. The firm will represent Torvane Industrial Group, Inc. in connection with claims arising out of the Kelling Station Unit 2 expansion project, including the prosecution of the company's claims against Ridgeline Constructors, Inc. through the dispute resolution procedures of the EPC agreement dated June 12, 2008. We will advise on strategy, conduct the arbitration and any related proceedings, and keep you informed at each significant step.

2. Staffing and Rates. I will lead the engagement at the firm's industrial-disputes rate of \$495 per hour. Caleb Wisner will serve as senior associate at \$310 per hour; paralegal time is billed at \$145 per hour. Rates are reviewed annually each January.

3. Billing. Monthly statements with itemized time and disbursements, payable within thirty days. Please reference Matter No. 2011-0284 on remittances.

4. Conflicts. We have completed our conflicts review and identified no conflict in undertaking this representation.

5. Client Documents and File. The file we create is maintained under the firm's records retention policy. On conclusion of the engagement, client documents will be returned on request.

6. Termination. Either party may terminate the engagement on written notice, subject to applicable rules of professional conduct.

If these terms are acceptable, please countersign below and return a copy.

Very truly yours,

Arthur Pllum
for PRESCOTT VANE LLP

AGREED AND ACCEPTED:

TORVANE INDUSTRIAL GROUP, INC.

By: _____
Rosalind Tenniel, General Counsel

Date: _____